

DRIVING UNDER THE INFLUENCE (DUI)

In Washington, it is illegal to drive under the influence of alcohol or drugs (RCW 46.61.502). Driving under the influence has life-threatening and legal consequences.

DUI also applies to being in control of a vehicle, even if it's parked (RCW 46.61.503). If you have the ability to take control of a vehicle's engine or operation, you are considered in physical control of the vehicle.

Under **The Implied Consent Law**

(RCW 46.20.308), everyone who drives in Washington agrees to be tested if an officer suspects they are under the influence of alcohol or drugs.



Blood Alcohol Concentration (BAC)

A BAC test measures how much alcohol is in your system. For drivers age 21 and older, having a BAC of .08% or higher is considered a DUI and can result in legal consequences. Drivers under age 21 have the same potential consequences for having a BAC of 0.02%.

Tetrahydrocannabinol (THC) Cannabis Concentration

A THC test measures how much THC is in your system. For drivers age 21 and older, having more than 5 nanograms of active THC per milliliter of blood in their system is considered a DUI and can result in legal consequences. Drivers under age 21 have the same potential consequences for anything more than 0 nanograms of active THC per milliliter of blood in their system.

If you refuse to be tested, you could lose your driving privilege for 90 to 730 days, or until you reach age 21, whichever is longer. The length of time of your suspension depends on many factors, including how many violations you've committed.